



CHAPTER xxv

An Act to confirm a Provisional Order of the Minister of Health relating to the borough of South Molton.
[30th July 1949.]

WHEREAS under the provisions of the Public Health Act 38 & 39 Vict. 1875 the Minister of Health has made a Provisional c. 55.
Order which needs confirmation by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order of the Minister of Health which is set out in the Order in schedule to this Act is hereby confirmed and shall have full ^{schedule} validity and force. _{confirmed.}

2. This Act may be cited as the Ministry of Health Provisional Short title.
Order Confirmation (South Molton) Act 1949.

SCHEDULE

BOROUGH OF SOUTH MOLTON

Provisional Order altering and partially repealing a local Act

WHEREAS the mayor aldermen and burgesses of the borough of South Molton acting by the council (in this Order called "the Corporation") are the local authority for the said borough for the purposes of the Public Health Act 1875:

25 & 26 Vict.
c. xxvii.

And whereas under the powers conferred on them by the South Molton Markets & Improvement Act 1862 the Corporation have established and hold markets and fairs at the cattle market in New Road in the said borough and a general market in Broad Street for the sale of butter cheese fish poultry meat and general produce and merchandise:

And whereas the Corporation are desirous of being empowered from time to time to alter the places at which the said cattle market and other markets are or may be held to establish and hold new markets and to discontinue the whole or any part of any existing or new markets:

And whereas by section 36 of the said Act the Corporation are empowered to demand in the cattle market such tolls as the Corporation may from time to time appoint not exceeding the several tolls for the cattle sheep and pigs markets and fair tolls specified in the Fifth Schedule to the said Act and by section 37 thereof the Corporation are empowered to demand and take in respect of their other markets and fairs such tolls as the Corporation may from time to time appoint not exceeding the general market tolls and fair tolls specified in the Sixth Schedule to the said Act:

And whereas by section 39 of the said Act the Corporation are entitled to demand and take in respect of the weighing and measuring of animals and things such tolls as they may from time to time appoint not exceeding the weighing and measuring tolls specified in the Seventh Schedule to the said Act and by section 40 thereof the Corporation are entitled to demand and take in respect of the user of their weighbridges or weighing machines such tolls as the Corporation may from time to time appoint not exceeding the weighbridge tolls specified in the Eighth Schedule to the said Act:

And whereas the Corporation are desirous of substituting new tolls for the tolls specified as aforesaid:

And whereas the Corporation have applied to the Minister of Health (in this Order called "the Minister") for the issue of a Provisional Order to alter and partially repeal the local Act hereinbefore mentioned for the purposes aforesaid:

Now therefore the Minister in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

Short title and
commencement.

1. This Order may be cited as the South Molton Order 1949 and shall come into operation on the date of the Act of Parliament confirming it.

2. In this Order unless the context otherwise requires—

Interpretation.

“the local Act” means the South Molton Markets & Improvement Act 1862 ;

“the markets of the Corporation” means the markets authorised by the Act of 1862 ;

“the markets undertaking” means the markets undertaking of the Corporation.

3. The Corporation without prejudice to any other powers conferred upon them by the local Act or by any other enactment may— Further powers as to markets.

(1) from time to time alter the places at which the markets of the Corporation respectively are or may be held and establish and hold new markets and discontinue the whole or any part of any such existing or new markets ;

(2) alter enlarge or improve any of the markets of the Corporation ;

(3) erect or provide offices shops catering establishments stores warehouses and other tenements or buildings for the purposes of or in connection with any of the markets of the Corporation and the markets undertaking.

4. The Corporation may grant leases (with the right if they think fit of assigning the same with their consent) of the market- Power to grant leases.

houses market-places weighing-houses weighing-places and weighing-machines from time to time under the management of the Corporation or any of them and the tolls or any of them and any of the stalls standing-places benches ground spaces and other conveniences in the markets of the Corporation or in any market-house or market-place for the time being belonging to them or under their management to any person for any period not exceeding seven years and may grant leases (with a similar right) of any office shop catering establishment store warehouse tenement cellar or building situate in any of the markets of the Corporation or forming part of or acquired or erected in connection with the markets undertaking including any premises not used for the time being in connection with the markets undertaking to any person for such period as the Corporation may think fit.

5. For the Fifth Sixth Seventh and Eighth Schedules of the local Market tolls.
Act there shall be substituted respectively Schedules A B C and D to this Order and sections 36 37 39 and 40 of the local Act shall be read and have effect accordingly.

6. The Corporation may with the sanction of the Secretary of State Alteration of tolls.
from time to time alter or add to the tolls and charges mentioned in the said schedules to the local Act as amended by this Order and any such altered tolls shall as from the date on which they come into operation be substituted for the corresponding tolls payable under the said schedules respectively.

7.—(1) The person in charge of any vehicle in which and any Information as to number weight &c. of animals and articles brought to market.
person by whom animals poultry or other articles are brought for sale in the markets of the Corporation shall give to any authorised market officer such information as to their number and kind or in the case of articles on which tolls are chargeable by reference to weight as to their weight as that officer may call for.

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(2) Any person who fails to comply with the provisions of this section shall be liable on summary conviction to a penalty not exceeding two pounds.

Compulsory
acquisition of
land for
markets
undertaking.
9 & 10 Geo. 6.
c. 49.

8.—(1) The Corporation may be authorised by the Minister to purchase land compulsorily for the purposes of the markets undertaking.

(2) The Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of that Act.

Power to
borrow.

9. The purposes of this order shall be purposes for which the Corporation may borrow money.

Repeals.

10. The undermentioned sections of the local Act are hereby repealed :—

section 17 (Power for Corporation to improve Market Houses &c.);

section 18 (Power for Corporation to provide Market Places);

section 19 (Discontinuance of Market Houses &c. when others provided);

section 34 (Leases of Shops Stalls &c. in Market Houses and Market Places);

section 43 (Power for Corporation to lease Market &c. for Three Years);

section 47 (Limit of Amounts to be borrowed);

section 48 (Power to reborrow Money);

section 49 (Arrears may be enforced by Appointment of a Receiver);

section 50 (Period of Sinking Fund);

section 51 (Sinking Fund to be provided);

section 52 (Investment and Application of Sinking Fund).

Reserve fund for
markets
undertaking.

11.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of the markets undertaking by setting aside such an amount as they may from time to time think reasonable and investing the same in statutory securities and accumulating the same until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation in respect of the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for the payment of the cost of renewing any part of the buildings or works forming part thereof or for any extension of the said buildings or works or otherwise for the benefit of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(2) Resort may be had to a reserve fund under the foregoing provisions although such fund may not at any time have reached or may have been reduced below the prescribed maximum.

(3) In section 44 (Application of Income from Markets and Fairs) of the local Act for the words from "Fifthly" to the end of the section there shall be substituted the following words:—

"Fifthly in providing a reserve fund in respect of the markets and fairs provided by the Corporation in pursuance of any enactment for the time being authorising them in that behalf".

12. The Minister may hold any inquiry which he may deem necessary for the purposes of this Order and subsections (2) to (5) of section 290 of the Local Government Act 1933 shall apply accordingly. Inquiries and expenses.

SCHEDULE A

CATTLE MARKET AND FAIR TOLLS

	£	s.	d.
For every bull ox cow heifer steer stirk or bullock on entering the market-place or fair-place			6
For every horse mare or gelding mule or ass sold or offered or exposed for sale within the borough ...	1	0	
For every sheep lamb goat or kid sold or offered or exposed for sale within the borough			2
For every hog or pig sold or offered or exposed for sale within the borough except in a shop not in any market-place and except sucking pigs			2
For every sucking pig sold or offered or exposed for sale within the borough except in a shop not in any market-place			1
For every calf sold or offered or exposed for sale within the borough			2

SCHEDULE B

GENERAL MARKET TOLLS AND FAIR TOLLS

	£	s.	d.
For every enclosed shop stall standing or place used for selling or offering or exposing for sale meat fish or any other live or dead victuals vegetables fruit china glass earthenware or other things—			
If taken by the year for the year	24	0	0
If taken by the half year for the half year ...	13	0	0
If taken by the quarter for the quarter	7	0	0
If taken by the week for the week	12	0	
	5		

	£	s.	d.
For every open butcher's shop or stall fitted up with racks and hooks—			
If taken by the year and to be occupied every market day fair day and other day for the year	13	0	0
If taken by the week and to be occupied only on the regular market days for the week ...	6	0	
For every such enclosed or open shop stall standing or place if taken for any day other than any market day	8	0	
For every stall standing or place for every superficial foot occupied for each day		3	
For every motor vehicle waggon or cart in which any thing is sold or offered or exposed for sale for each day	5	0	
For every truck barrow or other small vehicle drawn by hand used for like purposes for every superficial foot occupied for each day			1
For every five feet in length and five feet in depth or any less space occupied for selling or offering or exposing for sale poultry butter eggs fruit vegetables or other articles of provision commonly sold in poultry and vegetable markets (the space to be occupied by one person only) for each day			8
For every additional foot in length for the day			2
For the carcase of every bull ox steer cow or heifer calf sheep or lamb or any part thereof sold or offered or exposed for sale in the market by any person not occupying a shop or stall	4	0	
For the carcase of every hog sold or offered or exposed for sale by any person not occupying a shop or stall if the hog do not weigh more than five score of twenty pounds to the score			6
For every additional one hundred pounds or fraction of one hundred pounds			2
For every sack or bag containing potatoes or other roots			1
For every sack or bag containing potatoes or other roots brought within the limits of the foregoing Act for the purpose of sale but not pitched in any market place			2
For every superficial foot occupied for selling or offering or exposing for sale cabbage or other plants fruit-trees or other trees or any shrubs or plants or for any other purpose not in this schedule otherwise provided for			1
For every hand or other basket hamper show board or other thing not deposited on the ground but carried by any person for selling or offering or exposing for sale any provisions or other things			4
But for baskets containing vegetables only			2

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	£	s.	d.
For every waggon phaeton or other four-wheeled carriage sold or offered or exposed for sale by auction or otherwise	2	6	
For every plough harrow machine drill roller or other agricultural instrument sold or offered or exposed for sale by auction or otherwise	1	0	
For every waggon-load of hay or straw sold or offered or exposed for sale	1	0	
For every cart-load of hay or straw sold or offered or exposed for sale		6	
For every quantity of corn or grain not more in the whole than five bags sold or offered or exposed for sale ...		2	
For every additional quantity not more than five bags ...		1	
For every cart or waggon containing any potatoes or other roots or other vegetables or any corn grain or other agricultural produce sold or offered or exposed for sale but not pitched	3	0	
For every truck or wheelbarrow containing any of the last-mentioned articles sold or offered or exposed for sale	1	0	
For every superficial foot of every stall or open ground in any market-place used for selling or offering or exposing for sale on any market day or fair day any manufactured goods or cheese or other manufactured articles not in this schedule otherwise provided for on every market day or fair day for the day ...		6	
On every other day for the day		4	
For every superficial foot of ground in any market-place used for selling or offering or exposing for sale any carcase or other article whatever not in this schedule otherwise provided for		6	
For the use of the large public room in the new market-house for selling goods wares and merchandise by auction or otherwise or offering or exposing for sale any articles or for any other purpose whatever ...	10	0	0
For every booth if not above thirty square feet	5	0	
If above thirty and under one hundred square feet ...	7	0	
If above one hundred square feet	10	0	
For every caravan or other carriage	5	0	
For all fish sold or offered or exposed for sale for every superficial foot used for the purpose		1	
For every hawker or pedlar or other person selling or offering or exposing for sale any article whatever within the market or fair on any market day or fair day by hand or otherwise and not occupying any ground in any market-place or fair-place for every day	3	0	

£ s. d.

For every hawker or pedlar or other person selling or offering or exposing for sale any things in or from a cart waggon or other vehicle on any market day or fair day for every day 6 0

In estimating these tolls a fraction of a day shall be reckoned as a day and a fraction of a superficial foot above an entire superficial foot shall be reckoned as a superficial foot.

SCHEDULE C

WEIGHING AND MEASURING TOLLS

£ s. d.

From every person having any hide skin sheep lamb calf hog pig bull ox cow or other animal or thing weighed or measured at any of the weighing-machines provided under the foregoing Act—

For every hide	4
For every cwt. of tallow	4
For every fitch of bacon	2
For every skin	2
For every head of cattle	6
For every five (or a less number) of sheep or swine ...	3
For all other articles weighed whether sold in the market or fair if not more than twenty-eight pounds in weight	2
If more than twenty-eight pounds but not more than one cwt.	4
For every additional cwt. or fraction of a cwt.	4
For all things sold by measure for every bushel or less quantity	1

SCHEDULE D

WEIGHBRIDGE TOLLS

£ s. d.

For weighing any waggon	8
For weighing any cart or other carriage if not weighing more than two tons	6
If weighing more than two tons	1 0
For every load of coal wood corn grain hay straw or other agricultural produce or any other thing not weighing more than one ton	8
For every additional ton or fraction of a ton	4

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